

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

IN RE:

HO WAN KWOK, et al.,

Debtors.

LUC A. DESPINS,
Chapter 11 Trustee

Plaintiff,

vs.

INTERNATIONAL TREASURE GROUP LLC,

Defendant.

Chapter 11

Case No: 22-50073 (JAM)

(Jointly Administered)

Adversary Proceeding No. 24-05119

**AFFIDAVIT OF PAULO FIGUEIREDO IN SUPPORT OF
INTERNATIONAL TREASURE GROUP LLC'S
MOTION TO VACATE ENTRY OF DEFAULT AND DEFAULT JUDGMENT**

Paulo Figueiredo, duly sworn, deposes and states:

1. I am the principal and sole owner of International Treasure Group LLC ("ITG"), the Defendant in the above-captioned adversary proceeding. I am executing this affidavit in support of International Treasure Group LLC's Motion to Vacate Entry of Default and Default Judgment (the "Motion").

2. I am an individual over the age of eighteen, and if called as a witness, I could and would testify to the facts set forth below. The following facts are within my personal information and knowledge, and are based upon my review of the documents regarding these matters and pleadings in this action.

A. Background and My Role

3. I am a Brazilian political commentator and consultant who has worked for many years on issues at the intersection of politics, media, and business in Brazil and the United States. I am the sole owner and manager of ITG, a small consulting firm that I organized in Florida to provide strategic advisory and communications services to clients.

4. ITG has a small operation. For most of its existence, it functioned as a sole proprietorship consisting only of myself, and in 2024 I converted it into a C-corporation for tax and contractual reasons. I am ITG's sole employee. ITG has never had any administrative staff, office personnel, or in-house legal department. When additional work is required, I rely on independent contractors or vendors, including a Brazilian partner who occasionally assists with project tasks. ITG is, and has always been, a small consulting business operated essentially by one person.

5. I reside in Weston, Florida. ITG's business address is my home address located at 4394 Fox Ridge Drive, Weston, FL 33331 (the "Weston Address").

B. Engagement by GETTR and the Consulting Agreement

6. In mid-2021, I was approached by representatives of GETTR, a social media platform then being launched under the leadership of Mr. Jason Miller ("Mr. Miller"), the CEO of GETTR. Mr. Miller sought to launch and expand GETTR's operations in Brazil.

7. After discussions with GETTR's team, ITG prepared and delivered a detailed written proposal describing a comprehensive consulting and advisory engagement for GETTR's Brazil strategy. This proposal included strategic planning, set-up of operations, launch coordination, and ongoing advisory services (the "Brazil Launch Proposal"). A copy of that proposal, dated August 16, 2021 and titled "International Treasure Group LLC – Brazil Large-

Scale Launch Consulting / Advisory Proposal,” is attached as **Exhibit A**.

8. In addition to the Brazil Launch Proposal, ITG, at GETTR’s request, prepared several proposals covering the scope of its services, pricing, and work plan. Copies of those proposal documents, including drafts, updated proposals, and an extension proposal (collectively, the “Proposal Documents”), are attached as:

- a. **Exhibit B** – Proposta_GETTR (v2) (Portuguese-language proposal for the engagement).
- b. **Exhibit C** – GETTR – Proposal Draft for Discussion
- c. **Exhibit D** – GETTR – Proposal – Extension V01 dated December 17, 2021 (proposal to extend and continue the consulting work beyond the initial period).

9. Following these negotiations, GETTR agreed to move forward with the consulting relationship, which culminated in the execution of a consulting agreement between ITG and GETTR (the “Consulting Agreement”). The Consulting Agreement sets forth, among other things, the scope of work, term, and a monthly retainer fee payable in United States dollars. A copy of the Consulting Agreement is attached as **Exhibit E**.

10. The Consulting Agreement and the Proposal Documents reflect the core understanding between GETTR and ITG. ITG and its team would advise GETTR on its launch and growth strategy in Brazil, including legal and political risk analysis, media and public relations strategy, outreach to influencers and media outlets, and business-development support.

11. In early 2022, as the initial period of work progressed, I provided GETTR with a renewal or extension proposal for continued consulting services into the following year. A copy of the foregoing renewal proposal email is attached as **Exhibit F**.

C. Work Performed and Value Provided

12. Under the Consulting Agreement, ITG performed substantial work for GETTR.

The services ITG provided included, among other things:

- a. Strategic planning for GETTR's operations in Brazil, including analysis of local political dynamics, legal and regulatory risks, and reputational considerations.
- b. Identification and recommendation of Brazilian law firms to advise on platform terms of service, data protection, content regulation, and other legal issues;
- c. Advice on the structure and localization of GETTR's Brazilian operations, including options for local entities, hiring, and office presence;
- d. Development of branding and media strategy for Brazil, including recommendations on public-relations firms, advertising agencies, and traffic-generation initiatives; and
- e. Ongoing advisory support to GETTR's leadership on political events, media opportunities, and potential risks as Brazil approached its election cycle.

13. During the course of their business relationship, ITG submitted weekly reports to GETTR containing ITG's written analyses, updates, and recommendations. ITG's weekly report dated December 4, 2021, titled "GETTR – Weekly Report December 4, 2021," is attached as **Exhibit G** to serve as an example.

14. In addition to the reports, ITG prepared briefing scripts and related talking points to assist GETTR's leadership with media appearances, interviews, and events related to Brazil. Attached as **Exhibit H** is a copy of a briefing script titled "SCRIPT – BRIEFING PARA ESCOPO" to serve as an example.

15. The Proposal Documents, Consulting Agreement, weekly reports, briefing scripts,

and related correspondence together show that ITG provided GETTR with substantial, value-adding services over an extended period.

16. During the course of this engagement, GETTR (through its affiliated entities, including HCHK) paid ITG approximately \$140,000 in the aggregate for consulting services (the “Transfers”). On information and belief, each of these payments was made in satisfaction of invoices for services already rendered or ongoing work that ITG was actively performing for GETTR’s Brazil strategy.

17. On information and belief, at no point did ITG, or any member of ITG’s team, have any involvement in, or knowledge of, any alleged scheme by GETTR or HCHK to hinder, delay, or defraud creditors. All payments that ITG received from GETTR were for legitimate consulting work.

D. Financial Hardship

18. In 2023 and 2024, ITG experienced significant financial strain due to disruptions in its business, including the impact of political changes in Brazil and reduced consulting opportunities. As a result, ITG had limited cash flow and was unable to consistently afford United States counsel.

19. When the Chapter 11 Trustee first filed this adversary proceeding, ITG retained Jones & Associates as its primary counsel. Attorney Ronald I. Chorches was then engaged to serve as local counsel in the case. Following this, Attorney Chorches entered an appearance in the adversary proceeding and obtained an extension of time for ITG to respond to the Complaint.

20. Unfortunately, by mid-2024, ITG was no longer able to pay for the services of counsel. ITG’s attorney-client relationship with both Jones & Associates and Attorney Chorches was consequently terminated. As a result, Attorney Chorches moved to withdraw as local counsel,

and the Court granted that motion. After Attorney Chorches's withdrawal, ITG did not have the financial resources to retain professional legal representation, so I attempted to monitor the case on my own as a non-lawyer with no prior experience in United States bankruptcy litigation.

E. Mail Handling at the Weston Address

21. As noted above, the Weston Address is both my home address and ITG's business address.

22. Mail delivered to the Weston Address is not reviewed by any office manager or administrative assistant. Instead, envelopes are typically left in a common area such as the entryway or kitchen and may be picked up by me, my current wife, or even my ex-wife who drops by from time to time to collect her mail.

23. The Weston Address receives a heavy volume of unsolicited and marketing mail. Important items are sometimes mixed in with junk mail and set aside or discarded, especially if they do not clearly indicate that they relate to legal proceedings or do not look materially different from ordinary advertisements.

24. To the best of my recollection, I do not recall ever seeing a copy of the Trustee's Request for Entry of Default or the Clerk's Entry of Default before the Default Judgment. I likewise do not recall receiving or reviewing any separate mailing that called out the existence of an "Entry of Default" against ITG.

25. Between August and November of 2025, I was frequently traveling, including extended trips to Washington, D.C., and was devoting substantial time and attention to serious personal legal and security issues arising out of my political activities in Brazil. These circumstances further contributed to my reliance on the informal mail-handling practices at the Weston Address and help explain why any earlier bankruptcy-court mailings, if delivered, did not

come to my attention.

F. First Knowledge of the Default Judgment and Prompt Action

26. The first time I personally recall realizing that there was a default judgment against ITG in this adversary proceeding was when I opened mail from the United States Bankruptcy Court which contained a copy of the Default Judgment entered on October 30, 2025. I believe that I opened this envelope in early November 2025.

27. When I read the Default Judgment, I understood for the first time that the Trustee had obtained an actual money judgment against ITG for the full amount demanded in the Complaint. I was shocked and extremely concerned, because I believed that ITG had strong defenses and that we had provided real value to GETTR.

28. Within a week of opening the Default Judgment, I reached out to legal counsel to ask about my options for challenging it. After discussing my financial situation and the circumstances leading up to the default, I retained counsel for the purpose of moving to vacate the Entry of Default and the Default Judgment.

29. I have at all times intended to defend this case on the merits and have acted promptly once I understood the need to do so. As further evidence of ITG's prompt and good-faith effort to defend this action on the merits, ITG has prepared a Proposed Answer to the Complaint. A copy of that Proposed Answer is annexed hereto as **Exhibit I**.

G. Understanding of the Avoidance-Action Procedures

30. During 2024 and prior to my receipt of the Default Judgment, I was under the impression that this adversary proceeding would proceed to mediation. This impression arose from my review of the materials filed in this case, including the Court's May 2, 2024 Mediation Order and related correspondence, which indicated that this adversary proceeding had been assigned to

mediation.

31. In light of my understanding above, and given my lack of legal training, I believed in good faith that any dispute involving ITG would ultimately be addressed and resolved through the mediation process. I did not understand that the Trustee would move for, or that the Court would enter, a default judgment against ITG without that kind of mediation process first taking place.

H. Continuing Preservation of Evidence

32. ITG continues to maintain and preserve its consulting files relating to the GETTR engagement, including:

- a. the Proposal Documents and Consulting Agreement referenced above (Exhibits A through E);
- b. weekly reports, briefing scripts, and other written deliverables similar to Exhibits G and H; and
- c. banking records and invoices reflecting the payments that ITG received for its consulting work.

33. I am prepared to cooperate with ITG's counsel in collecting and producing these materials in discovery if the Court grants the Motion and allows ITG to answer the Complaint.

34. I submit this affidavit to demonstrate that ITG is a legitimate consulting firm that provided real value to GETTR, that any failure to respond to the Complaint or the Motion for Default Judgment was the product of financial hardship, mail-handling problems, and my misunderstanding of complex bankruptcy procedures, and that ITG moved promptly to seek relief once I understood that a default judgment had been entered.

35. I declare under penalty of perjury under the laws of the United States of America

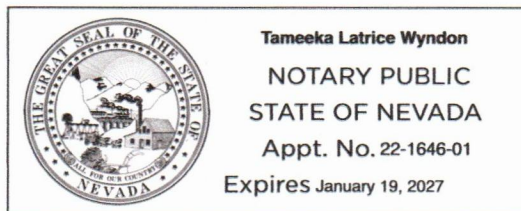
that the foregoing is true and correct.

Dated: December 2, 2025

Paulo Renato de Oliveira Figueiredo Filho

Paulo Figueiredo

In witness whereof, I have hereunto subscribed my name and affixed my official stamp
on this 2nd day of December 2025.




Notary Public
Tameeka Latrice Wyndon

Notarized remotely using audio-video communication technology via Proof.